Fort Bend County District Court

Cause No. 2024-CV-0016

Sharon Flores, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Oral Deposition of Sharon Flores

Date:	August 2, 2024
Location:	Offices of Arias & Perry Injury Lawyers
Examining attorney:	Marilyn Fox, Ashford & Lyle LLP
Defending attorney:	Anthony Galvan, Arias & Perry Injury Lawyers

Q: Please state your full name for the record.

A: I'd rather just give you my initials for the record, if that's all right with counsel.

Q: Your attorney has confirmed that's acceptable. Let's begin with the accident. Where were you when it happened?

A: I was stopped at a traffic light on the main road in Conroe, Texas, in the left lane, waiting to turn.

Q: What were you driving?

A: My sedan. It's a mid-size car, a few years old.

Q: Were you wearing your seatbelt?

A: Yes, I was.

Q: Describe what happened.

A: I was sitting there with my foot on the brake when I felt a hard jolt from behind. My head snapped back and then forward. The car lurched into the intersection a bit before I could stop it. The other driver had been looking at his phone, he told the officer that himself.

Q: Did you get out of the vehicle at the scene?

A: I did, but I felt stiff almost immediately. My lower back was tight and I had trouble standing up straight for a few minutes.

Q: Did you seek medical care that day?

A: The paramedics checked me at the scene and asked whether I wanted to go to the emergency room. I said yes, mainly because the pain was getting worse as the adrenaline wore off.

Q: What did the doctors diagnose?

A: A lumbar strain, which is a pulled muscle and ligament injury in my lower back. They said there was no fracture and nothing broken.

Q: What treatment have you received since then?

A: I've been going to physical therapy about three times a week. They have me doing stretches and some core strengthening. I also use a heating pad at night and take anti-inflammatory medication when the pain flares up.

Q: How has the injury affected your daily life?

A: Quite a bit. I used to coach my nephew's soccer team on weekends, and I've had to step back from that. Sitting for long periods at my desk at work is painful, so I stand up often. Simple things like lifting groceries or bending to tie my shoes can set off a sharp pain.

Q: Have you missed any work?

A: I took a few days off right after the accident and then returned on a modified schedule. Some days I still struggle to get through a full shift without discomfort.

Q: Do you currently have any back problems that predate this accident?

A: I had some mild stiffness years ago after a long road trip, but it went away with rest. Befroe this collision I was not in regular treatment and I was able to do my normal activities without much trouble.